

25CMUD01035 25CMUD01035

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-01

Motion: MOTION FOR ATTORNEY FEES DATE: July 1, 2026 TIME: 8:30 A.M.

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Case Number: 25CMUD01035 Hearing Date: July 1, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

BUSINESS

PURPOSE FUNDING, INC.,

Plaintiff,

vs.

FLOR ANTONIO; GLORIA ANGELICA

URIZAR, IGNACIO SANCHEZ, DOES 1 TO 10; ET AL.,

Defendants.

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CASE NO: 25CMUD01035

[TENTATIVE] ORDER RE: MOTION FOR ATTORNEY
FEES

DATE: July 1, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant
Flor Antonio and Gloria Angelica Urizar

Responding Party: Plaintiff
Business Purpose Funding

Notice: Ok

Tentative Ruling: Defendant's
Motion for Attorney's Fees is DENIED.

I.

BACKGROUND

This is an
unlawful detainer action. Plaintiff Business Purpose Funding, Inc. alleges that
it owns the real property located at 153 East 102nd Street, Los

Angeles, CA 90003 ("the Premises") and that on or about June 1, 2016 Defendants Flor Antonio ("Antonio"), Gloria Angelica Urizar ("Urizar") and Ignacio Sanchez ("Sanchez")^[1]

entered into a written monthly lease agreement to rent the Premises for \$1,200 per month. Plaintiff alleges Defendants failed to pay the monthly rental amount due, were served a 3-day Notice to Pay Rent or Quit, and failed to pay the amounts due in the specified time period.

On August 7, 2025, Plaintiff Business Purpose Funding Inc ("Plaintiff") filed its unlawful detainer complaint against Defendants and Does 1 to 10 seeking possession of the Premises, past due rent, attorney fees, forfeiture of the agreement, and holdover damages.

On September 23, 2025, Antonio and Urizar filed an Answer.

On February 11, 2026, the Clerk of the Court entered a default judgment in favor of Plaintiff and against Sanchez for past rent due in the amount of \$12,500.00 and holdover damages of \$7,760.00 for a total of \$20,260.00. (See Judgment, 2/11/26.) On the same date, the Clerk of the Court entered judgment for Urizar and Antonio and against Plaintiff. (Id.)

On March 16, 2026, Defendants filed the instant Motion for Attorney Fees.

On June 25, 2026, Plaintiff filed an Opposition.^[2]

Defendants have not filed a Reply.

II.

ANALYSIS

A.

Legal Standard

Pursuant to Civil Code § 1717, "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the

party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code § 1717(a) see also *Excess Electronix v. Heger Realty Corp.* (1998) 64 Cal.App.4th 698, 706 ("If a cause of action is 'on a contract,' and the contract provides that the prevailing party shall recover attorneys' fees incurred to enforce the contract, then attorneys' fees must be awarded on the contract claim in accordance with Civil Code section 1717.")) "Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit." (Civ. Code § 1717(a).)¿

B.

Discussion

Antonio and Urizar move pursuant to Civil Code § 1717 to recover attorney fees in the total amount of \$29,750.00, contending that they are the prevailing parties in this action because Plaintiff failed to obtain possession of the Premises and the rental agreement upon which the action is premised contains an attorney fees clause. Plaintiff opposes, arguing that the Premises was purchased at a foreclosure sale and as such the lease is unenforceable. Plaintiff also argues that, after initially refusing to produce a copy of the lease, Defendants asserted in their Answer under penalty of perjury that the lease in question was "illegal and/or unenforceable" and since no valid lease exists, no attorney fees may be awarded. Finally, Plaintiff contends that the fees sought are unreasonable.

On February 11, 2026, the Court entered judgment in favor of Plaintiff and against Sanchez for past rent due in the amount of \$12,500.00 and holdover damages \$7,760.00 for a total of \$20,260.00. On the same date, the Court issued a Minute Order awarding restitution and possession of the premises located at 153 East 102nd Street, Los Angeles, CA 90003 to Plaintiff. (See Minute Order, 2/11/26.)

It appears that, through clerical error, the February 11, 2026 judgment was entered mistakenly entered in favor of Urizar and Antonio. The Court's February 11, 2026 Minute Order accurately reflects the judgment of this Court; possession and restitution of the Premises was awarded to Plaintiff. Pursuant to Code of Civil Procedure § 473(d)[3], the Court of its own motion, the Court orders the February 11, 2026 judgment against Urizar and Antonio corrected to award possession and restitution of the Premises to Plaintiff.

In accordance with the above, the Court does not find that Urizar and Antonio are the prevailing parties entitled to an award of attorney fees. Plaintiff sought, and was awarded, restitution of the Premises via its unlawful detainer action. That no past due rent or holdover damages were awarded against Urizar and Antonio is of no import. As Defendants accurately point out in their moving papers, the rent sought is "a mere incident to the main object -- the recovery of possession." (See *Strickland v. Becks* (1979) 95 Cal.App.3d Supp. 18, 21.)

III.

CONCLUSION

Antonio and Urizar's Motion for Attorney Fees is DENIED.

[1] Antonio, Urizar and Sanchez are collectively referred to herein as the "Defendants."

[2] Plaintiff's Opposition is untimely. Pursuant to Code of Civil Procedure § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties "at least nine court days ... before the hearing" and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) The Court exercises its discretion to consider Plaintiff's late filing.

[3] "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed" (Code Civ. Proc. § 473(d).)